

# CONFIDENTIALITY, NON-SOLICITATION & INTRODUCED-PARTY PROTECTION AGREEMENT

Reusable Odoo master between {{HONGYI\_LEGAL\_NAME}} and {{CUSTOMER\_LEGAL\_NAME}}

|                      |                                                                                        |
|----------------------|----------------------------------------------------------------------------------------|
| AGREEMENT REFERENCE  | {{AGREEMENT_REFERENCE}}                                                                |
| EFFECTIVE DATE       | {{EFFECTIVE_DATE}}                                                                     |
| PROGRAMME / PROPOSAL | {{PROGRAMME_NAME}} — {{PROPOSAL_NUMBER}} {{PROPOSAL_VERSION}}, dated {{PROPOSAL_DATE}} |

This Agreement is entered into between {{HONGYI\_LEGAL\_NAME}} ("Hongyi"), registered office at {{HONGYI\_REGISTERED\_ADDRESS}}, and {{CUSTOMER\_LEGAL\_NAME}} ("Customer"), registered office at {{CUSTOMER\_REGISTERED\_ADDRESS}} (together, the "Parties"). During evaluation, proposal, sourcing or programme execution, either Party may disclose Confidential Information. Hongyi may also introduce the Customer to members of its supplier and professional ecosystem. This Agreement protects that information and those evidenced introductions against unauthorised use or commercial bypass while permitting ordinary technical communication for approved work.

This Agreement supplements the applicable Hongyi commercial proposal, programme agreement, order punch and other signed programme documents (together, the "Main Agreement"). If there is a direct conflict, the Main Agreement prevails, except that a later written instrument expressly stated to amend this Agreement prevails for the subject amended.

## 1. Definitions

**Confidential Information** means non-public technical, product, pricing, sourcing, supplier, commercial, programme, process and contact information disclosed by or on behalf of either Party; the existence and terms of this Agreement; and any analysis or derivative containing such information.

**Introduced Party** means any designer, engineer, consultant, toolmaker, manufacturer, component supplier or other person whose identity, contact or access is introduced to the Customer by Hongyi and formally recorded in an Introduced Party Notice issued under clause 6.

**Protected Opportunity** means the specific project or opportunity identified in the applicable Introduced Party Notice, together with directly connected extensions, variants and repeat orders arising from the same introduction.

**Direct Engagement** means an appointment, order, contract or other commercial arrangement made directly or indirectly with an Introduced Party outside the approved Hongyi-governed route.

**Permitted Communication** means technical, quality, delivery or operational communication reasonably necessary for an approved Hongyi-governed project, which does not by itself authorise a Direct Engagement.

**Representatives** means a Party's employees, directors, professional advisers and contractors who need the relevant information and are bound by confidentiality obligations no less protective than this Agreement.

## 2. Confidentiality (mutual)

Each receiving Party shall use the other Party's Confidential Information only to evaluate, contract, govern or execute the relevant Hongyi programme, protect it with reasonable care, and disclose it only to Representatives who need it for that purpose.

These obligations do not apply to information lawfully known before disclosure, publicly available without breach, lawfully received from a third party without a confidentiality duty, or independently developed without use of the disclosing Party's Confidential Information. If disclosure is legally compelled, the receiving Party shall, where legally permitted, promptly notify the disclosing Party, disclose only what is required and reasonably cooperate in seeking protective treatment.

Confidentiality obligations continue for five years after each disclosure; information that remains a genuine trade secret remains protected for as long as that status continues under applicable law. On written request or completion of the relevant purpose, the receiving Party shall return or securely destroy Confidential Information, subject to copies required by law or standard backup retention.

## 3. Personal data

Personal and business contact data shared under this Agreement shall be used only for the relevant programme, limited to personnel who need access, protected by reasonable safeguards, and not reused for unrelated marketing, recruitment or solicitation. Each Party shall comply with applicable data-protection law and notify the other without undue delay of a material security incident affecting data received under this Agreement.

## 4. Introduced-Party protection

Protection applies only to an actual Introduced Party formally recorded under clause 6 and only for the identified Protected Opportunity and directly connected work. It does not extend to unrelated future business.

During the Protected Period, the Customer shall not, without Hongyi's prior written consent, enter into a Direct Engagement with a recorded Introduced Party for the relevant Protected Opportunity; solicit or induce that party to move Hongyi-governed work outside the approved route; or use supplier identities, pricing or sourcing intelligence disclosed by Hongyi to bypass Hongyi for that opportunity.

This protection does not apply where the Customer had an active, independently pre-existing commercial relationship with the same party for the same scope before Hongyi's introduction, as evidenced under clause 6, nor to ordinary market procurement unrelated to a Protected Opportunity. No Introduced Party is recorded as of the Effective Date; later introductions are recorded only through a controlled Notice.

## 5. Non-solicitation

During the Protected Period, the Customer shall not directly or indirectly solicit, induce or offer to engage any employee or key individual of Hongyi, or of a recorded Introduced Party, who was materially involved in the Protected Opportunity, to leave that engagement or divert Hongyi-governed work outside the approved route without Hongyi's prior written consent. Ordinary unsolicited job applications responding to a general public advertisement are not a breach.

## 6. Introduced Party Notice

Hongyi may record an introduction by issuing a written Introduced Party Notice identifying the party, category or capability, relevant opportunity and objective evidence of the introduction (for example, a dated email, meeting record or quotation).

The Customer has ten business days from receipt to raise a written objection supported by evidence of an active, independently pre-existing commercial relationship for the same or substantially related scope. Mere prior awareness, an unused contact or a database entry is not sufficient. A Notice not timely objected to is treated as acknowledged for evidentiary purposes, subject to contrary proof and applicable law. Supplier-sensitive details remain access-controlled and are not listed in this base Agreement.

## 7. Direct dealing and consent

The Customer may communicate directly with a recorded Introduced Party for Permitted Communication. Such communication does not authorise a Direct Engagement or transfer Hongyi's commercial role or governance responsibility.

A Direct Engagement is permitted only with Hongyi's prior written consent recorded in a Direct Engagement Consent / Limited Release. The release is limited to its stated scope, party and duration and does not release any other Introduced Party or opportunity.

## 8. Protected Period

Clauses 4 to 7 apply during the relevant Hongyi engagement and for twenty-four months after its completion or termination, only in relation to Introduced Parties and Protected Opportunities first recorded during that engagement, and only to the maximum extent permitted by applicable law. Confidentiality obligations under clause 2 continue independently.

## 9. Representations

Each signatory represents that they are authorised to bind the relevant Party. Unless expressly stated in the Main Agreement, Hongyi does not guarantee an Introduced Party's solvency, performance, quality, delivery or regulatory compliance. Due diligence and contracting responsibility for any approved Direct Engagement remain with the Customer under the Main Agreement or written release. This Agreement grants no exclusivity over an Introduced Party and does not restrict ordinary business with parties who are not recorded Introduced Parties.

## 10. Remedies

A confirmed unauthorised Direct Engagement or misuse of Confidential Information is a material breach. Hongyi may suspend the affected workstream, restrict further introductions and terminate the affected engagement where contractually permitted.

Any monetary claim is limited to loss proved or reasonably established under applicable law, including Sections 73 and 74 of the Indian Contract Act, 1872 where applicable. This Agreement creates no automatic penalty or guaranteed injunction. Either Party may seek interim or other relief where available and granted by a competent court.

## 11. General

This Agreement creates no partnership, agency, employment or exclusivity. Neither Party may assign it in a manner that defeats its protections; a permitted successor must accept equivalent obligations. A waiver is effective only if written and signed. If a provision is invalid or unenforceable, it shall be applied to the maximum lawful extent or severed, and the remaining provisions continue.

This Agreement, its controlled Notices and Consents, and the Main Agreement contain the entire understanding on this subject. Amendments must be in writing and signed or electronically accepted by authorised representatives. This Agreement may be executed in counterparts and by a legally recognised electronic signature.

Indian law governs. Competent courts at Delhi, India have jurisdiction, subject to the Main Agreement and mandatory law. Notices to Hongyi: {{HONGYI\_NOTICE\_EMAIL}}. Notices to Customer: {{CUSTOMER\_NOTICE\_EMAIL}} and the registered office address above.

## 12. Acceptance

By signing below through an authorised representative, each Party confirms that it has read, understood and accepted this Agreement. The effective date is the date of the last verified signature unless the metadata above states another date.

### CONTROLLED EXECUTION GATE

Odoo may issue this agreement only after all mandatory party, proposal and notice facts are present; the approved master version is selected; user and legal release controls are satisfied; and both parties' verified acceptance evidence is recorded. A checkbox alone is not execution evidence.

### Controlled companion documents

Supplier identities and introduction evidence are recorded only in an access-controlled **Introduced Party Notice**. Any permitted direct commercial arrangement requires a separately approved **Direct Engagement Consent / Limited Release**. Neither document is created automatically by this base agreement.

| For {{HONGYI_LEGAL_NAME}}                     | For {{CUSTOMER_LEGAL_NAME}}                     |
|-----------------------------------------------|-------------------------------------------------|
| Name: {{HONGYI_SIGNATORY_NAME}}               | Name: {{CUSTOMER_SIGNATORY_NAME}}               |
| Designation: {{HONGYI_SIGNATORY_DESIGNATION}} | Designation: {{CUSTOMER_SIGNATORY_DESIGNATION}} |
| Signature / verified e-signature: _____       | Signature / verified e-signature: _____         |
| Date: _____                                   | Date: _____                                     |